

title. The prayer does include “specific performance of the breached contract alleged,” however, no contract is alleged. The Complaint is uncertain in this respect, so the cause of action is not adequately pled. The demurrer to the Fifth Cause of Action is SUSTAINED with leave to amend.

Defendant’s Demurrer to the Complaint is sustained in part and overruled in part as detailed above. A proposed order was lodged but is inadequate. Defendant filed the instant Demurrer as well as a separate Motion to Strike, but submitted only one combined order. Defendant is ordered to submit a stand-alone proposed order on the Demurrer consistent with the Court’s ruling. For those causes of action for which leave to amend was granted, Plaintiff will have 10 days to amend running from notice of entry of order.

Tentative Ruling on Motion to Strike: This matter arises out of foreclosure on 18300 Antler School Road, Lakehead, CA 96051 (“Property”). Plaintiff Nella Semaj Foundation, Inc.’s Complaint alleges five causes of action for: 1. Negligence, 2. Violation of Civ. Code § 2923, et seq., 3. Violation of Business and Professions Code § 17200, et seq., 4. Wrongful Foreclosure, and 5. Declaratory Relief. Defendant One Thousand and Nine, LLC moves to strike portions of the Complaint relating to damages. The Motion to Strike was properly noticed, and is unopposed.

Meet and Confer: Before filing a motion to strike a party is required to meet and confer in person or on the telephone. CCP § 435.5(a). A motion to strike shall be supported by a declaration stating either that the parties met and conferred or that they were unable to meet and confer. CCP § 435.5(a)(3). The Declaration of Brianna Milligan satisfies this requirement.

Merits: A motion to strike can be used to attack the entire pleading, or any part thereof, including single words or phrases. *Stearns Ranchos v. Atchison Topeka & Santa Fe Railway* (1981) 19 Cal.App.3d 24. It is proper for the Court to strike any irrelevant, false or improper matter. CCP § 436(a). The Court can also strike any part of a pleading that is not drawn or filed in conformity with California law. CCP § 436(b).

Defendant moves to strike portions of Plaintiff’s Complaint as follows:

1. Emotional distress damages on Negligence claim in paragraph 53.
2. Emotional distress damages on 17200 claim in paragraph 62.
3. Treble damages in Prayer, paragraph 5.
4. Punitive damages in Prayer, paragraph 7.

Defendant moves to strike these portions of the Complaint on the grounds that these requested awards are not legally recoverable. The allegations of Plaintiff’s Complaint do not support damages for emotional distress, treble damages, or punitive damages. The Motion to Strike is GRANTED in its entirety. A proposed order was lodged but is inadequate. Defendant is ordered to submit a stand-alone proposed order on the Motion to Strike consistent with the Court’s ruling.

O2 STAFFING, INC. VS. AHRENS, ET AL.

Case Number: 24CV-0205621

Tentative Ruling on Motion to Set Aside Default: Defendant Farzad Sabet moves to set aside the default entered on December 26, 2024. Plaintiff O2 Staffing, Inc. does not oppose setting aside the default, however, Plaintiff seeks reimbursement of the fees and costs associated with the default.

(b) The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding

six months, after the judgment, dismissal, order, or proceeding was taken. However, in the case of a judgment, dismissal, order, or other proceeding determining the ownership or right to possession of real or personal property, without extending the six-month period, when a notice in writing is personally served within the State of California both upon the party against whom the judgment, dismissal, order, or other proceeding has been taken, and upon his or her attorney of record, if any, notifying that party and his or her attorney of record, if any, that the order, judgment, dismissal, or other proceeding was taken against him or her and that any rights the party has to apply for relief under the provisions of Section 473 of the Code of Civil Procedure shall expire 90 days after service of the notice, then the application shall be made within 90 days after service of the notice upon the defaulting party or his or her attorney of record, if any, whichever service shall be later. No affidavit or declaration of merits shall be required of the moving party. Notwithstanding any other requirements of this section, the court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against his or her client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against his or her client, unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect. The court shall, whenever relief is granted based on an attorney's affidavit of fault, direct the attorney to pay reasonable compensatory legal fees and costs to opposing counsel or parties. However, this section shall not lengthen the time within which an action shall be brought to trial pursuant to Section 583.310.

(c)(1) Whenever the court grants relief from a default, default judgment, or dismissal based on any of the provisions of this section, the court may do any of the following:

- (A) Impose a penalty of no greater than one thousand dollars (\$1,000) upon an offending attorney or party.
- (B) Direct that an offending attorney pay an amount no greater than one thousand dollars (\$1,000) to the State Bar Client Security Fund.
- (C) Grant other relief as is appropriate.

(2) However, where the court grants relief from a default or default judgment pursuant to this section based upon the affidavit of the defaulting party's attorney attesting to the attorney's mistake, inadvertence, surprise, or neglect, the relief shall not be made conditional upon the attorney's payment of compensatory legal fees or costs or monetary penalties imposed by the court or upon compliance with other sanctions ordered by the court.

CCP § 473.

Here, counsel has provided evidence of attorney mistake and inadvertence which caused Defendant to not timely file a responsive pleading and default to be entered. While the blame was placed on “an administrative oversight in [his] office” and not Mr. Swanson himself, the Declaration of Jeffery J. Swanson acts as an attorney affidavit of fault. This makes granting the motion mandatory under CCP § 473(b) unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect. The Court does not find this. Therefore, the default will be set aside. Given the evidence presented and lack of objection by Plaintiff, the Court also would have set aside the default under the discretionary portion of CCP § 473(b).

“The court shall, whenever relief is granted based on an attorney's affidavit of fault, direct the attorney to pay reasonable compensatory legal fees and costs to opposing counsel or parties.” CCP § 473(b). Additionally, the Court can impose a penalty no greater than \$1,000, direct a payment of no greater than \$1,000 to the State Bar Client Security Fund, or grant other relief as appropriate.

Here, Plaintiff seeks \$2,101.85 as reimbursement of costs incurred in seeking default that would not have been incurred had Defendant timely responded to the summons. The \$2,101.85 is comprised of fees for service of process, attorney time to prepare a letter regarding service, attorney time for requesting default, attorney time to meet and confer regarding setting aside the default, and attorney time spent on this motion, including the reply and attending the hearing. The Court finds that the service of process fees and .4 hours to prepare the letter regarding service would have been incurred regardless. However, Plaintiff's counsel spent .4 hours preparing the Request for Entry of Default, .9 hours meeting and conferring regarding this motion, and 2.5 hours reviewing and responding to this motion. Counsel expects to spend one hour attending the hearing and reviewing the Reply which would bring the total to 4.8 hours of attorney time. The Court finds the \$350 hourly rate to be reasonable. The Court orders that Defendant and counsel reimburse Plaintiff for \$1,680.00 for attorney fees incurred by Plaintiff that would not have been incurred had Defendant timely responded to the summons.

The Court notes that Defendant also moves under CCP § 473.5 and extrinsic mistake. The Court need not reach the merits of either as the motion is granted under CCP § 473(b). However as there is an argument regarding fees, the Court notes that to prevail under CCP § 473.5, a defendant must show that service of the summons did not result in actual notice to the party. That is not the case here. Missing from Defendant's declaration is any mention that he did not receive the summons when it was served by substitute service at Defendant's place of employment on October 30, 2024. While CRC 3.1700(a)(2) requires that costs be requested at the time of seeking a default judgment, only a default was sought on December 26, 2024, not a default judgment. Additionally, Defendant has provided no legal authority that the Court cannot order reimbursement of costs under CCP § 473 when the costs are not listed under Item 2 of the CIV-100 form or that the Court cannot order reimbursement when the default is set aside based on intrinsic mistake. The Court notes that had the Court set aside under the discretionary portion of CCP § 473(b), the Court could still impose “any terms as may be just.” Reimbursement of costs incurred due to the fault of the opposing party is manifestly just.

The motion is **GRANTED**. The default entered on December 26, 2024 is ordered set aside. Defendant must file a responsive pleading within 30 days of today's hearing. Defendant and counsel have 10 days from today's hearing to reimburse Plaintiff \$1,680.00. Defendant did not provide a proposed Order as required by Local Rule of Court 5.17(D). Defendant is to prepare an Order consistent with the Court's ruling. The Court confirms the review hearing scheduled for **Monday, July 7, 2025 at 9:00 a.m. in Department 63.**

REYNOLDS VS. QUALITY CARE HOME, INC., ET AL.

Case Number: 22CV-0200604

Tentative Ruling on Motion for Terminating Sanctions: Plaintiff Lisa Reynolds moves for terminating sanctions based on Defendants' failure to pay monetary sanctions ordered in prior discovery motions. On May 5, 2025, Defendants filed the Declaration of Yue Zhao providing evidence a check was mailed on April 7, 2025 and another check was hand delivered on April 22, 2025. Plaintiff filed a Notice of Non-Opposition on May 6, 2025 in which Plaintiff confirms that both checks were received. While the payment of the monetary sanctions does not render the motion moot, the Court does not find that any additional sanctions are warranted and declines to award any of the relief requested by Plaintiff. The motion is **DENIED**. No sanctions will be awarded. Plaintiff provided a proposed Order that will be modified to reflect the Court's ruling.